

City Council Meeting November 4th 2024

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=LWdDbTwKjLA
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Muncie City Council Meeting Report

Meeting Date: November 4, 2024

Report Type: Structured Municipal Summary

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The regular monthly meeting of the Muncie City Council was called to order on November 4, 2024, by the presiding officer. Attendees were instructed to mute cell phones.
- **Attendance:**
 - **Members Present:** Council members including Mr. Green, Mr. Garrett, Mr. Mason, Mr. Bastion, Mr. McIntosh, Ms. [Powell/Selvie as noted contextually], and President Dishman. (Roll call confirmed a full quorum).
 - **Presiding Officer:** President Dishman.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by the council, followed by an invocation delivered by William McIntosh.
- **Citizen Recognitions:** William McIntosh presented the City of Muncie Citizen of the Month Award to **Ronda Ward**, highlighting her 23-year career as an educator, director of

diversity for Muncie Community Schools, and assistant director of the Muncie Area Career Center, as well as her community service and HBCU alumni engagement. (Jeff Green was announced as the presenter for next month's award).

- **Approval of Minutes:** The prior meeting minutes were approved by roll call vote (passed unanimously).
 - **Board Appointments:** Appointments to the Mts. Bus Board were deferred to the next month to allow residents time to contact their respective council members.
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4. Substantive Business & Board Action

- **00:08:25 Ordinance 24-24: Ordinance Amending Chapter 76 (Abandoned Vehicles)**
 - **Sponsor / Presenter:** Sponsored by council members; Chief Slone (Muncie Police Department) and Belinda Munson (City Clerk) provided input.
 - **Deliberation Summary:** Chief Slone stated that the police department decided to operate under state code for abandoned vehicles rather than this specific local ordinance, as other parking regulations will be addressed separately in December. City Clerk Belinda Munson raised concerns regarding ticket collections, noting that by state code and city ordinances, the clerk's office should manage the Violations Bureau collections to avoid conflicts of interest.
 - **Action & Vote Disposition:** Withdrawn by the sponsor, followed by a formal roll call vote confirming the withdrawal, passed unanimously.
- **00:13:38 Ordinance 26-24: Establishment of Designated Outdoor Refreshment Areas (DORA)**
 - **Sponsor / Presenter:** Presented with input from Becca Rice (Ball State University), Bill Let (Elm Street Brewery), and Chase Bruton (Town Manager of Yorktown, speaking as a DORA expert).
 - **Deliberation Summary:** Proponents emphasized that a DORA would boost downtown and village vibrancy, connect distinct districts (such as McKinley), and reduce the need for multiple special permits during events like beer fests. Chief of Police noted that enforcement capabilities for public intoxication and disorderly conduct remain active and expressed confidence in managing the district, referencing successful implementations in nearby Yorktown.
 - **Item-Specific Public Input:**
 - *Mike Sullivan (2615 W. Purdue Ave.):* Expressed caution, drawing parallels to problems in Portland, Oregon, and arguing that alcohol mixed with public spaces requires rigorous police enforcement.
 - *Elizabeth Edel:* Spoke in strong support as a former downtown business owner, noting the need for live music continuity and foot traffic.
 - *Becca Rice (Ball State University):* Expressed university support, citing \$200 million invested in the Village and coordination with campus and city police.

- *Bill Let (Elm Street Brewery)*: Supported the measure to allow patrons to move freely between local venues without special permits.
- **Action & Vote Disposition**: Approved by roll call vote (recorded with a mix of yes and no votes, passing the council). *Note: Final implementation remains subject to approval by the Indiana Alcohol Tobacco Commission.*
- **00:24:54 Ordinance 27-24: Zoning Change on East Centennial Avenue (Tabled)**
 - **Sponsor / Presenter**: Kathy Van Ice (Ashton Land Surveyor) and Donna Drake (Drake Properties).
 - **Deliberation Summary**: The proposal sought to rezone parcels (3700 block of East Centennial Avenue) from R3 Residence Zone to BV (Variety Business Zone) to utilize an existing pole barn for storage/staging of remodeling materials. The Planning Commission previously issued a **7<U+2013>0 unfavorable recommendation** due to neighbor complaints regarding trespassing across a septic system and past dumping concerns. Surveyors noted a privacy fence and new gravel driveways were installed to mitigate neighbor disputes. Council members expressed strong hesitation due to the unanimous negative recommendation from the Planning Commission and concerns regarding industrial/tanker runoff.
 - **Item-Specific Public Input**: Representatives for the property owner defended the improvements and promised the property would not be sold to a disruptive enterprise.
 - **Action & Vote Disposition**: Tabled until next month to allow the applicant to return to the Planning Commission and secure neighbor sign-offs.
- **00:47:16 Ordinance 28-24: Zoning Change on 13th Street (Heating & Cooling Business)**
 - **Sponsor / Presenter**: Kathy Van Ice (Ashton Land Surveyor).
 - **Deliberation Summary**: The ordinance rezones property on 13th Street from R4 Residence Zone to BV (Variety Business Zone). The long-standing heating and cooling business has operated at the location for over 50 years, but a pending property sale stalled because banks required proper commercial zoning. The Planning Commission gave a favorable recommendation.
 - **Action & Vote Disposition**:
 - Introduced, rules suspended by unanimous vote, and adopted via roll call vote.
- **00:52:13 Ordinances 29-24, 30-24, 31-24, & 32-24: Annexation Areas #1 through #4**
 - **Sponsor / Presenter**: Mayor Rynoweth, Nick Kyle (Barnes & Thornburg attorney), Jason Tree (Cronin Associates, Financial Advisor), and local fire/police representatives.
 - **Deliberation Summary**: Four annexation ordinances covering Farmington neighborhood, Heron Point neighborhood, a city-owned parcel near Farmington, and Westminster Village. Officials explained that public meetings were held and that properties are already at their tax caps, meaning annexation will not increase

property tax bills unless assessed home values rise. Fire and police officials testified that current staffing and equipment (including Medic 7 enhancements) can adequately absorb the projected 72 police calls and daily medical runs, generating an estimated \$100,000 to \$150,000 in annual EMS revenue for Westminster Village.

- **Item-Specific Public Input:** Elizabeth Edel raised concerns regarding public awareness, the speed of the process, and whether the targeted areas truly lacked services.
- **Action & Vote Disposition:** Introduced via voice vote / roll call across the four distinct parcels to advance toward statutory public hearings.
- **00:32:53 Ordinances 33-24, 34-24, 35-24, & 36-24: 2025 Salary Ordinances**
 - **Sponsor / Presenter:** Administration representatives.
 - **Deliberation Summary:** These ordinances fix the maximum salaries for appointed officers, elected officials, police department members, and fire department members for 2025, reflecting a baseline 1% increase over prior planned figures. Officials noted potential future amendments depending on ongoing union contract negotiations.
 - **Action & Vote Disposition:** Introduced successfully via voice/roll call votes.
- **01:38:13 Ordinance 37-24: Establishment of Code of Ethics & Ethics Commission**
 - **Sponsor / Presenter:** Councilman Jeff Robinson, Dr. Charles Taylor (Chair of the Ethics Advisory Committee), and Elizabeth Edel.
 - **Deliberation Summary:** Proponents celebrated the culmination of 18 months of committee work following Resolution 6-23. The ordinance establishes Titles 9, Chapters 40 to 43 of the Muncie Code of Ordinances, creating a comprehensive local code of ethics and an independent 5-member enforcement commission (two appointed by council, two by the mayor, and a fifth selected by those four). Supporters emphasized that an ethical framework acts as a vital “smoke detector” to restore public trust and transparency.
 - **Item-Specific Public Input:**
 - *Elizabeth Edel:* Praised the committee’s work and emphasized marketing trends prioritizing integrity and transparency.
 - *Jeff Robinson:* Outlined the history and mechanics of the ordinance, urging a strong affirmative vote.
 - *Dr. Charles Taylor:* Shared letters of support from community organizations (such as the Muncie Action Plan) and highlighted that legal advice was sought from the Association of Indiana Municipalities (AIM).
 - **Action & Vote Disposition:** Introduced successfully.
- **02:02:38 Resolution 13-24: Adoption of Annexation Fiscal Plan**
 - **Sponsor / Presenter:** Financial consultants and administration.
 - **Deliberation Summary:** Adopts the definitive fiscal policy and annexation financial plan covering infrastructure costs (estimated at \$20,500 in ongoing street

maintenance and a one-time \$150,000 street extension) alongside projected property tax re-apportionments and state distribution adjustments.

- **Action & Vote Disposition:** Adopted by roll call vote.
- **02:06:34 Resolution 14-24: Recognizing November as Transgender Awareness Month**
 - **Sponsor / Presenter:** Authored by Councilwoman Powell.
 - **Deliberation Summary:** Proposes designating November as Transgender Awareness Month, encouraging public education, supporting civil rights protections, advocating for access to evidence-based healthcare, and calling on the Human Rights Commission to review local policies.
 - **Item-Specific Public Input:** Extended public comment featured impassioned testimony from numerous community members, medical providers, advocates, and religious leaders. Proponents (including State Rep. Sue Arrington, local practitioners, and parents) stressed the life-saving importance of community visibility, inclusion, and suicide prevention. Opponents (including Tim Overton and Kathy Romero) argued from traditional and biological standpoints that normalization could drive cultural shifts.
 - **Action & Vote Disposition:** Failed by roll call vote (Recorded individual “No” votes from Council members including Mr. McIntosh, Mr. Green, President Dishman, and others).
- **03:09:09 Ordinance 17-24: Zoning Change on West 15th Street (Mobile Home Park - Brought off Table)**
 - **Sponsor / Presenter:** Nate Schneider (Manager, Garkey Mobile Home Park) and Kylene Swackhammer (Plan Commission).
 - **Deliberation Summary:** Brought back off the table from a prior meeting, this ordinance rezons properties at 701, 703, 711, and 801 West 15th Street from R4 Residence Zone to MHR (Mobile Home Residence Zone) to bring existing mobile home park expansions into compliance and accommodate newer replacement housing units. The Planning Commission supported the change.
 - **Action & Vote Disposition:** Brought off the table and adopted via roll call vote.

5. Open Public Comment / Citizen Forum

- **02:54:53 Cheryl Teaching (1518 W. 13th Street):** Addressed the council regarding chronic code enforcement failures in her neighborhood, including unaddressed property maintenance issues, a multi-year tree stump removal delay by the urban forester, and bureaucratic hurdles related to sidewalk permits.
- **03:00:07 Joseph Romero (Shepherd’s Heart and Hands):** Highlighted ongoing grassroots ministry work supporting unhoused populations, winter warming centers, and a newly discovered pressing need for home-delivered food boxes for disabled seniors and

homebound families. He also announced the upcoming "Christmas for the Homeless" event on November 30.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Reminders regarding upcoming public hearings and the procedural timelines required for the newly introduced annexations and salary ordinances.
 - **Adjournment:** The meeting was officially adjourned following a motion and second at the conclusion of the agenda.
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